

No. A-_____

IN THE SUPREME COURT OF THE UNITED STATES

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.,
APPLICANTS

v.

INTERNATIONAL REFUGEE ASSISTANCE PROJECT, ET AL.

APPLICATION FOR STAY PENDING APPEAL
TO THE UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT AND PENDING
FURTHER PROCEEDINGS IN THIS COURT

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PARTIES TO THE PROCEEDING

The applicants (defendants-appellants below) are Donald J. Trump, in his official capacity as President of the United States; the Department of Homeland Security; Elaine C. Duke, in her official capacity as Acting Secretary of Homeland Security; the Department of State; Rex W. Tillerson, in his official capacity as Secretary of State; the Office of the Director of National Intelligence; Daniel R. Coats, in his official capacity as Director of National Intelligence; Kevin K. McAleenan, in his official capacity as Acting Commissioner of U.S. Customs and Border Protection; and L. Francis Cissna, in his official capacity as Director of U.S. Citizenship and Immigration Services.

The respondents (plaintiffs-appellees below) are the International Refugee Assistance Project, HIAS, Inc., the Middle East Studies Association of North America, Inc., the Arab American Association of New York, the Yemeni-American Merchants Association, Iranian Alliances Across Borders, Iranian Students' Foundation, Muhammed Meteab, Mohamad Mashta, Grannaz Amirjamshidi, Fakhri Ziaolhagh, Shapour Shirani, Afsaneh Khazaeli, Paul Harrison, Ibrahim Ahmed Mohomed, Eblal Zakzok, Sumaya Hamadmad, Fahed Muqbil, and several John and Jane Does.*

* Samaneh Takaloo and Allan Hakky were plaintiffs in the district court but have since been terminated from the case.

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Pursuant to this Court's Rule 23 and the All Writs Act, 28 U.S.C. 1651, the Solicitor General, on behalf of applicants President Donald J. Trump, et al., respectfully applies for a stay of the preliminary injunction issued by the United States District Court for the District of Maryland, pending the consideration and disposition of the government's appeal from that injunction to the United States Court of Appeals for the Fourth Circuit and, if the court of appeals affirms the injunction, pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court.

The Constitution and Acts of Congress confer on the President broad authority to prevent aliens abroad from entering this country

when he deems it in the Nation's interest. In order to protect national security, the President exercised that authority by issuing Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017) (Proclamation). The Proclamation is the culmination of an extensive, worldwide review process conducted by multiple government agencies to determine what information is necessary from each foreign country in order to admit nationals of that country to the United States while ensuring that travelers do not pose a security or public-safety threat. Whereas the President's prior immigration orders were temporary measures to facilitate that review, the Proclamation directly responds to the completed review and its specific findings. After the review, the Acting Secretary of Homeland Security found that some countries continue to be unwilling or unable to share needed information with the United States, to reliably verify the identity of their nationals, or to control terrorists within their borders. Accordingly, the Acting Secretary recommended that the President impose restrictions on the entry of certain nationals of eight countries -- Chad, Iran, Libya, North Korea, Syria, Venezuela, Yemen, and Somalia -- in order to protect the security of the United States.

The President reviewed the Acting Secretary's recommendation; consulted with the Acting Secretary, the Secretaries of State and Defense, and the Attorney General; considered foreign-policy, national-security, and counterterrorism goals; and assessed each

country's distinct circumstances. The President then issued the Proclamation, which restricts the entry of certain nationals of the eight countries identified in the Acting Secretary's recommendation. The Proclamation describes the President's judgment that these restrictions are necessary both to prevent the entry of foreign nationals about whom the United States lacks sufficient information, and to elicit more information and more secure practices from foreign governments that are deficient. The entry suspensions are subject to certain exceptions, case-by-case waivers, and periodic review.

The Proclamation differs from the President's prior executive orders both in process and substance. It is the product of a review process undertaken by multiple Cabinet officers and government officials, none of whose motives has ever been questioned. And it is based on express findings of inadequacies in the information-sharing practices, identity-management protocols, and risk factors for certain countries, as well as a Presidential determination that tailored entry restrictions will both protect the Nation and encourage those countries to improve. The Proclamation covers different countries than the prior order: it removes one majority-Muslim country; adds other countries, some of which are not majority-Muslim; and excludes various nonimmigrant travelers from all but one of the majority-Muslim countries. These differences confirm that the Proclamation is

based on national-security and foreign-affairs objectives, not religious animus.

Notwithstanding the significant differences between the Proclamation and the President's prior orders, the district court again issued a preliminary injunction largely barring enforcement worldwide of the Proclamation's entry suspensions. Whereas the court had previously concluded that the President's prior orders violated the Establishment Clause, the court now concluded that the Proclamation violates the Establishment Clause and the Immigration and Nationality Act. The government immediately appealed to the Fourth Circuit and requested a stay pending appeal and disposition of a petition for a writ of certiorari and further proceedings in this Court, but the Fourth Circuit has not acted on that request.

All of the relevant factors strongly support a stay of the Maryland court's injunction. First, if the Fourth Circuit upholds the injunction, there is a reasonable probability that this Court will grant a writ of certiorari, as it did the last time courts barred the President from enforcing entry restrictions on certain foreign nationals in the interest of national security. See Trump v. IRAP, 137 S. Ct. 2080, 2086 (2017). The injunction nullifies a formal national-security directive of the President, and the district court's interpretations of the INA would constrain the ability of this and all future Presidents to take measures to

protect the Nation and achieve critical foreign-relations objectives. Second, there is more than a fair prospect that this Court will reverse the injunction because respondents' claims are neither justiciable nor meritorious. The district court ignored the critical differences between the President's prior orders and the Proclamation, especially that the latter followed a multi-Department review process and addresses countries that do not currently provide sufficient information to assess the risk that their nationals pose to the United States. Third, preventing the President from effectuating his national-security and foreign-relations judgment will cause ongoing irreparable harm to the government and the public, especially by requiring the Executive to disregard the identified inadequacies and by undermining the Proclamation's goal of inducing cooperation by other nations. At a minimum, the injunction should be stayed to the extent it goes beyond identified aliens whose exclusion allegedly imposes concrete, irreparable injury on these particular respondents. See United States Dep't of Def. v. Meinhold, 510 U.S. 939 (1993).¹

STATEMENT

1. The Immigration and Nationality Act (INA), 8 U.S.C. 1101 et seq., governs admission of aliens into the United States.

¹ Although the district court correctly did not extend its injunction to the President himself, Add. 89, the President is injured by the injunction because it prevents the Executive Branch from carrying out his Proclamation.

Admission generally requires a valid visa or other valid travel document. See 8 U.S.C. 1181, 1182(a)(7)(A)(i) and (B)(i)(II), 1203. The process of applying for a visa typically includes an in-person interview and results in a decision by a State Department consular officer. 8 U.S.C. 1201(a)(1), 1202(h), 1204; 22 C.F.R. 41.102 (nonimmigrant visa), 42.62 (immigrant visa). Although a visa often is necessary for admission, it does not guarantee admission; the alien still must be found admissible upon arriving at a port of entry. 8 U.S.C. 1201(h), 1225(a).

Congress also has created a Visa Waiver Program, enabling nationals of certain countries to seek temporary admission without a visa. 8 U.S.C. 1182(a)(7)(B)(iv); 8 U.S.C. 1187 (2012 & Supp. IV 2016). In 2015, Congress excluded from travel under that Program aliens who are dual nationals of or recent visitors to Iraq or Syria -- where "[t]he Islamic State of Iraq and the Levant * * * maintain[s] a formidable force" -- and nationals of and recent visitors to countries designated by the Secretary of State as state sponsors of terrorism (Iran, Sudan, and Syria).² Congress also authorized the Department of Homeland Security (DHS) to designate additional countries of concern, considering whether a country is a "safe haven for terrorists," "whether a foreign

² U.S. Dep't of State, Country Reports on Terrorism 2015, at 6, 299-302 (June 2016), <https://goo.gl/40GmOS>; see 8 U.S.C. 1187(a)(12)(A)(i) and (ii) (Supp. IV 2016). As of November 20, 2017, North Korea is a designated state sponsor of terrorism. See <http://www.cnn.com/TRANSCRIPTS/1711/20/cnr.07.html>.

terrorist organization has a significant presence" in it, and "whether the presence of an alien in the country * * * increases the likelihood that the alien is a credible threat to" U.S. national security. 8 U.S.C. 1187(a)(12)(D)(i) and (ii) (Supp. IV 2016). Applying those criteria, in 2016, DHS excluded from the Program recent visitors to Libya, Somalia, and Yemen.³

Congress also has accorded the Executive broad discretion to suspend or restrict the entry of aliens, including aliens who might otherwise be eligible to receive a visa and be admitted to the United States. Section 1182(f) of Title 8 provides:

Whenever the President finds that the entry of any aliens or of any class of aliens into the United States would be detrimental to the interests of the United States, he may * * * for such period as he shall deem necessary, suspend the entry of all aliens or any class of aliens as immigrants or nonimmigrants, or impose on the entry of aliens any restrictions he may deem to be appropriate.

Section 1185(a)(1) further grants the President broad authority to adopt "reasonable rules, regulations, and orders" governing entry of aliens, "subject to such limitations and exceptions as [he] may prescribe."

2. In March 2017, the President issued Executive Order No. 13,780, 82 Fed. Reg. 13,209 (Mar. 9, 2017) (EO-2), which directed the Secretary of Homeland Security to determine whether foreign governments provide adequate information to vet foreign nationals applying for United States visas before they are

³ DHS, DHS Announces Further Travel Restrictions for the Visa Waiver Program (Feb. 18, 2016), <https://goo.gl/OXTqb5>.

permitted to enter. See Trump v. IRAP, 137 S. Ct. 2080, 2083 (2017) (describing EO-2). In order to ensure that dangerous individuals did not enter while the government was working to establish adequate standards, and to reduce investigative burdens on the agencies during the review, EO-2 temporarily suspended the entry of foreign nationals from six countries previously identified by Congress or the Executive as presenting terrorism-related concerns. See id. at 2083-2084.

EO-2 was challenged in multiple courts, and partially enjoined by district courts in Maryland and Hawaii. IRAP v. Trump, 241 F. Supp. 3d 539 (D. Md. 2017); Hawaii v. Trump, 245 F. Supp. 3d 1227 (D. Haw. 2017). The Fourth and Ninth Circuits upheld those injunctions in substantial part. IRAP v. Trump, 857 F.3d 554 (4th Cir. 2017) (en banc); Hawaii v. Trump, 859 F.3d 741 (9th Cir. 2017) (per curiam). This Court granted certiorari and partially stayed the injunctions pending review. IRAP, 137 S. Ct. at 2086, 2088-2089. The Court allowed EO-2's entry suspension to take effect except as to "foreign nationals who have a credible claim of a bona fide relationship with a person or entity in the United States." Id. at 2088. And the Court stated that "the executive review directed by" EO-2 "may proceed promptly, if it is not already underway." Ibid. After EO-2's temporary entry suspension expired, this Court vacated the lower courts' rulings as moot.

Trump v. IRAP, No. 16-1436, 2017 WL 4518553 (Oct. 10, 2017); Trump v. Hawaii, No. 16-1540, 2017 WL 4782860 (Oct. 24, 2017).

3. On September 24, 2017, the President issued Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017). The Proclamation is the product of EO-2's comprehensive, worldwide review of whether foreign governments provide sufficient information and have other practices to allow the United States to properly screen their nationals before entry.

a. DHS, in consultation with the Department of State and the Office of the Director of National Intelligence, undertook "to identify whether, and if so what, additional information will be needed from each foreign country to adjudicate an application by a national of that country for a visa, admission, or other benefit under the INA * * * in order to determine that the individual is not a security or public-safety threat." Procl. § 1(c). The Acting Secretary of Homeland Security, in consultation with the Secretary of State and Director of National Intelligence, developed a "baseline" for the information required from foreign governments. Ibid. That baseline incorporated three components:

(i) identity-management information, i.e., "information needed to determine whether individuals seeking benefits under the immigration laws are who they claim to be," which turns on criteria such as "whether the country issues electronic passports embedded with data to enable confirmation of identity, reports lost and stolen passports to appropriate entities, and makes available upon request identity-related information not included in its passports";

(ii) national-security and public-safety information about whether a person seeking entry poses a risk, which turns on criteria such as "whether the country makes available * * * known or suspected terrorist and criminal-history information upon request," "whether the country impedes the United States Government's receipt of information about passengers and crew traveling to the United States," and "whether the country provides passport and national-identity document exemplars"; and

(iii) a national-security and public-safety risk assessment of the country, which turns on criteria such as "whether the country is a known or potential terrorist safe haven, whether it is a participant in the Visa Waiver Program * * * that meets all of [the program's] requirements, and whether it regularly fails to receive its nationals subject to final orders of removal from the United States."

Ibid.

DHS, in coordination with the Department of State, collected data on, and evaluated, nearly 200 countries. Procl. § 1(d). The agencies measured each country's performance in issuing reliable travel documents and implementing adequate identity-management and information-sharing protocols and procedures. Ibid. They also evaluated terrorism-related and public-safety risks associated with each country. Ibid. The Acting Secretary of Homeland Security identified 16 countries as having "inadequate" information-sharing practices and risk factors, and another 31 countries as "at risk" of becoming "inadequate." Id. § 1(e). The Department of State then conducted a 50-day engagement period to encourage all foreign governments to improve their performance, which yielded significant improvements from many countries. Id. § 1(f). Multiple countries provided travel-document exemplars to

combat fraud, and/or agreed to share information on known or suspected terrorists. Ibid.

b. After the review concluded, on September 15, 2017, the Acting Secretary of Homeland Security identified seven countries that, even after diplomatic engagement, continue to have inadequate identity-management protocols or information-sharing practices, or whose nationals present other heightened risk factors: Chad, Iran, Libya, North Korea, Syria, Venezuela, and Yemen. Procl. § 1(h). The Acting Secretary therefore recommended that the President impose entry restrictions on certain nationals from these countries. The Acting Secretary also recommended entry restrictions for nationals of Somalia, which, although it generally satisfies baseline requirements for information sharing, has identity-management deficiencies and a significant terrorist presence within its territory that the Somali government is unable to control. Id. § 1(i).⁴

c. The President evaluated the Acting Secretary's recommendations in consultation with multiple Cabinet members and other government officials. Procl. § 1(h)(i) and (ii). The President considered a number of factors, including each country's "capacity, ability, and willingness to cooperate with our

⁴ The Acting Secretary also assessed that Iraq does not meet the information-sharing baseline, but recommended that the President not restrict entry of Iraqi nationals in light of, among other things, the close cooperative relationship between the United States and the government of Iraq. Procl. § 1(g).

identity-management and information-sharing policies and each country's risk factors," as well as "foreign policy, national security, and counterterrorism goals." Id. § 1(h)(i).

Then, "in accordance with the recommendations," the President imposed entry restrictions on certain nationals from the eight countries that are tailored to "each country's distinct circumstances." Procl. § 1(h)(i)-(iii). The President determined that these restrictions are "necessary to prevent the entry of those foreign nationals about whom the United States Government lacks sufficient information to assess the risks they pose to the United States," and "to elicit improved identity-management and information-sharing protocols and practices from foreign governments." Procl. § 1(h)(i).

For countries that refuse to cooperate regularly with the United States (Iran, North Korea, and Syria), Section 2 of the Proclamation suspends entry of all nationals, except for Iranians seeking nonimmigrant student (F and M) and exchange-visitor (J) visas. Procl. § 2(b)(ii), (d)(ii), and (e)(ii). For countries that are valuable counter-terrorism partners but have information-sharing deficiencies (Chad, Libya, and Yemen), the Proclamation suspends entry only of nationals seeking immigrant visas and nonimmigrant business, tourist, and business/tourist visas. Id. § 2(a)(ii), (c)(ii) and (g)(ii). For Somalia, the Proclamation suspends entry of nationals seeking immigrant visas and requires

additional scrutiny of nationals seeking nonimmigrant visas. Id. § 2(h)(ii). And for Venezuela, which refuses to cooperate in information sharing but for which alternative means are available to identify its nationals, the Proclamation suspends entry of government officials “involved in screening and vetting procedures” and “their immediate family members” on nonimmigrant business or tourist visas. Id. § 2(f)(ii).

The Proclamation provides for case-by-case waivers where a foreign national demonstrates that denying entry would cause undue hardship, entry would not pose a threat to the national security or public safety, and entry would be in the national interest. Procl. § 3(c)(i)(A)-(C). The Proclamation requires periodic reporting to the President about whether entry restrictions should be continued, modified, terminated, or supplemented. Id. § 4.

4. a. Respondents filed suit in the District of Maryland challenging the Proclamation under the INA, various other statutes, and the Establishment, Equal Protection, and Due Process Clauses. Respondents are 23 individuals and seven organizations. The individual respondents are U.S. citizens or lawful permanent residents who have relatives from Iran, Syria, Yemen, Somalia, or other countries not covered by the Proclamation seeking immigrant or nonimmigrant visas. Addendum (Add.) 21-22. Three of the organizational plaintiffs provide services to clients, including refugees and immigrants to the United States. Add. 22. The other

organizational plaintiffs convene events on issues relating to the Middle East or advocate on behalf of their members. Ibid.

b. After highly expedited briefing, the district court granted a worldwide preliminary injunction barring enforcement of Section 2 of the Proclamation, except as to nationals of Venezuela and North Korea, and except for individuals "who have a credible claim of a bona fide relationship with a person or entity in the United States." Add. 88.

The district court held that at least some respondents have standing and have justiciable claims. Add. 23-40. On the merits, the court rejected respondents' claims under 8 U.S.C. 1182(f) because "there is no requirement that a § 1182(f) entry restriction * * * be 'narrowly tailored' or the 'least restrictive means' to obtain its stated aims." Add. 51. The court did conclude, however -- in a reversal of its prior position on the question -- that the Proclamation likely violates 8 U.S.C. 1152(a)(1)(A), which bars "discriminat[ing]" or granting a "preference or priority" in the "issuance of an immigrant visa because of," inter alia, an alien's "nationality." See Add. 42-48. The court also held that the Proclamation likely violates the Establishment Clause, reiterating its view that EO-2 was the product of animus and holding that the Proclamation fails to "cure" the "taint." Add. 61-84.

5. The government promptly appealed the preliminary injunction, requested expedited briefing, and moved for a stay

pending appeal as well as a petition for certiorari and proceedings in this Court. The Fourth Circuit has not acted on the motion.

6. Meanwhile, litigation over the Proclamation has proceeded in other courts. As relevant here, the District Court for the District of Hawaii globally enjoined implementation of Section 2's suspension of entry of nationals from the designated countries except Venezuela and North Korea. Hawaii v. Trump, 2017 WL 4639560 (D. Haw. Oct. 17, 2017). The Hawaii court held, contrary to the Maryland court, that the Proclamation violates 8 U.S.C. 1182(f) because of insufficient "fit" between the President's findings and the entry restrictions. Id. at *9. The court further held that the Proclamation likely violates 8 U.S.C. 1152(a)(1)(A), id. at *12-*13, but the court declined to reach the plaintiffs' constitutional claims, id. at *9. The government appealed, requested expedited briefing, and sought a stay pending appeal and further proceedings in this Court. The Ninth Circuit stayed the Hawaii court's injunction "except as to 'foreign nationals who have a credible claim of a bona fide relationship with a person or entity in the United States.'" Hawaii v. Trump, 2017 WL 5343014, at *1 (9th Cir. Nov. 13, 2017). The government has filed in this Court an application for a full stay of the Hawaii court's injunction pending appeal and this Court's review.

ARGUMENT

Under this Court's Rule 23 and the All Writs Act, 28 U.S.C. 1651, a single Justice or the Court has authority to stay a district-court order pending appeal to a court of appeals.⁵ In considering the application, the Court or Circuit Justice considers whether four Justices are likely to vote to grant certiorari if the court of appeals ultimately rules against the applicant; whether five Justices would then likely conclude that the case was erroneously decided below; and whether, on balancing the equities, the injury asserted by the applicant outweighs the harm to the other parties or the public. See San Diegans for the Mt. Soledad Nat'l War Mem'l v. Paulson, 548 U.S. 1301, 1302 (2006) (Kennedy, J., in chambers); Hilton v. Braunskill, 481 U.S. 770, 776 (1987) (traditional stay factors). Here, all of those factors counsel strongly in favor of a stay. At a minimum, the injunction -- which bars enforcement of the Proclamation's entry suspensions worldwide as to every affected country other than North Korea and Venezuela -- is vastly overbroad and should be stayed to the extent it goes beyond remedying the alleged injury to respondents from the exclusion of identified aliens.

⁵ See, e.g., Trump v. Hawaii, No. 16-1540, 2017 WL 3045234 (July 19, 2017); West Virginia v. EPA, 136 S. Ct. 1000 (2016); Stephen M. Shapiro et al., Supreme Court Practice § 17.6, at 881-884 (10th ed. 2013).

I. THIS COURT IS LIKELY TO GRANT CERTIORARI IF THE COURT OF APPEALS AFFIRMS THE INJUNCTION

If the Fourth Circuit affirms the injunction against the Proclamation in whole or in part, this Court is likely to grant certiorari, as it did when the Fourth and Ninth Circuits upheld preliminary injunctions against EO-2. As before, this case presents exceptionally important questions concerning the President's authority to exclude aliens abroad based on his national-security and foreign-policy judgment. The Proclamation was expressly authorized by Acts of Congress, 8 U.S.C. 1182(f) and 1185(a)(1), that "implement[] an inherent executive power" regarding the "admissibility of aliens." United States ex rel. Knauff v. Shaughnessy, 338 U.S. 537, 542 (1950). The district court's injunction nullifies the President's exercise of that authority based on a fundamental misreading of the INA and an accusation that the President was motivated by religious animus.

This Court has granted certiorari to address interference with Executive Branch determinations that are of "importance * * * to national security concerns," Department of Navy v. Egan, 484 U.S. 518, 520 (1988); see Winter v. Natural Res. Def. Council, Inc., 555 U.S. 7, 12 (2008), and to address "important questions" of interference with "federal power" over "the law of immigration and alien status," Arizona v. United States, 567 U.S. 387, 394 (2012); see United States v. Texas, 136 S. Ct. 2271 (2016) (per curiam). Both considerations are present here.

Indeed, if the Fourth Circuit were to affirm the injunction here, the need for this Court's review would be even greater than before. Whereas EO-2 was premised on the President's conclusion that uncertainty about the adequacy of other governments' information-sharing warranted a review of their protocols and cooperation, the Proclamation is based on the President's affirmative determinations -- made following a comprehensive, multi-Department review -- that particular countries' information sharing is in fact deficient. The district court's decision improperly second-guesses those findings and disables the Executive from fully responding to existing and identified national-security risks. It also undermines the President's ability to use entry restrictions as a means to induce foreign governments' cooperation.

Moreover, by attempting to delve into the President's motives, the district court injected itself into sensitive matters of foreign affairs, risking "what [this] Court has called in another context 'embarrassment of our government abroad' through 'multifarious pronouncements by various departments on one question.'" Sanchez-Espinoza v. Reagan, 770 F.2d 202, 209 (D.C. Cir. 1985) (Scalia, J.) (quoting Baker v. Carr, 369 U.S. 186, 217, 226 (1962)). The district court's conclusion that this President cannot avoid a discriminatory "taint" even when he relies on independent assessments by government officials in multiple

departments, and after consultation with multiple Cabinet officials, will undermine the President's ability to conduct foreign policy regarding majority-Muslim nations.

II. THERE IS AT LEAST A FAIR PROSPECT THAT THIS COURT WILL SET ASIDE THE INJUNCTION IN WHOLE OR IN PART

If the Fourth Circuit affirms the injunction in this case, there is at least a "fair prospect" that this Court will vacate the injunction in whole or in part, Lucas v. Townsend, 486 U.S. 1301, 1304 (1988) (Kennedy, J., in chambers), because respondents' claims are not justiciable and because they fail on the merits.

A. Respondents' Claims Are Not Justiciable

1. The district court erred in considering respondents' statutory challenges to the Proclamation. "[T]he power to expel or exclude aliens [is] a fundamental sovereign attribute exercised by the Government's political departments largely immune from judicial control." Fiallo v. Bell, 430 U.S. 787, 792 (1977). This Court has accordingly made clear that "it is not within the province of any court, unless expressly authorized by law, to review the determination of the political branch of the Government to exclude a given alien." Knauff, 338 U.S. at 543. The Executive's decision to exclude or deny a visa to an alien abroad therefore "is not subject to judicial review * * * unless Congress says otherwise." Saavedra Bruno v. Albright, 197 F.3d 1153, 1159 (D.C. Cir. 1999). But Congress has not authorized any judicial review of visa denials -- even when requested by the

alien affected, see 6 U.S.C. 236(f) -- much less by third parties like respondents. In fact, Congress has expressly forbidden "judicial review" of the revocation of a visa even for aliens already in the United States, subject to a narrow exception for an alien in removal proceedings. 8 U.S.C. 1201(i); see also Gov't Br. at 23-26, Trump v. IRAP, No. 16-1436 (Aug. 10 2017).

The district court nevertheless relied on now-vacated opinions from the Fourth and Ninth Circuits to conclude that plaintiffs may challenge "a broader policy as opposed to individual consular determinations." Add. 37. But the nonreviewability rule is based on separation-of-powers principles, not the nature of consular officers' individualized visa decisions. Saavedra Bruno, 197 F.3d at 1159, 1163. Although the nonreviewability rule is most often applied to individual visa-adjudication decisions, it would invert the constitutional structure to deny review of decisions by consular officers -- subordinate Executive-Branch officials -- while permitting review of a statutory challenge to the President's decision to suspend entry of classes of aliens.

The district court also held that the Administrative Procedure Act (APA), 5 U.S.C. 701 et seq., allows respondents to challenge the Proclamation. Far from displacing the general rule, the APA embraces it in multiple ways. First, the APA does not apply at all where Congress has otherwise "preclude[d] judicial

review," 5 U.S.C 701(a)(1), and it is "unmistakable" from history that "the immigration laws 'preclude judicial review' of the consular visa decisions." Saavedra Bruno, 197 F.3d at 1160 (citation omitted). Second, the APA's cause of action expressly leaves intact other "'limitations on judicial review,'" which include the nonreviewability rule. Ibid. (quoting 5 U.S.C. 702(1)). Third, unless and until the specific aliens identified by respondents apply for visas, are found by a consular officer to be otherwise eligible to receive visas, and are then denied visas and waivers under the Proclamation, there is no "final agency action" for a court to review, as required by 5 U.S.C. 704. Fourth, the APA does not permit review to the extent "agency action is committed to agency discretion by law." 5 U.S.C. 701(a)(2). The statutes that authorize the Proclamation here, 8 U.S.C. 1182(f) and 1185(a)(1), "exude[] deference" to the President and "foreclose the application of any meaningful judicial standard of review." Webster v. Doe, 486 U.S. 592, 600 (1988).

Review is unavailable for other reasons as well. Respondents' challenges are not ripe because they "rest[] upon 'contingent future events'" -- including that the aliens will not obtain visas -- "'that may not occur as anticipated, or indeed may not occur at all.'" Texas v. United States, 523 U.S. 296, 300 (1998). And finally, the statute invoked by the district court does not confer on a third party in the United States a judicially cognizable

interest in the denial of a visa to an alien abroad that could be the basis for an APA suit. Section 1152(a)(1)(A) applies to aliens abroad seeking visas, not their relatives or relationship partners in the United States. The existence of multiple barriers to review of respondents' INA claims counsels against allowing the injunction premised on those claims to disable the Proclamation during an expedited appeal.

2. The district court further erred in considering respondents' constitutional claims. This Court has twice permitted limited judicial review where a U.S. citizen claimed that exclusion of an alien violated the citizen's own constitutional rights. See Kleindienst v. Mandel, 408 U.S. 753, 760, 762 (1972); Kerry v. Din, 135 S. Ct. 2128, 2131 (2015) (opinion of Scalia, J.). That narrow exception does not permit review of respondents' Establishment Clause challenge because the Proclamation's suspension of entry for certain aliens abroad does not violate respondents' own Establishment Clause rights.

The district court held that some individual respondents have been personally harmed by the Proclamation through the prolonged separation from their relatives, Add. 32-33, but those alleged injuries are not cognizable. Even if some of the individual respondents' family members would be denied entry under the Proclamation, that would not implicate respondents' own religious-freedom rights under the Establishment Clause, because the denial

of a visa to a family member would not result from alleged discrimination against any plaintiff himself. See McGowan v. Maryland, 366 U.S. 420, 429-430 (1961); see also Elk Grove Unified Sch. Dist. v. Newdow, 542 U.S. 1, 15-18 & n.8 (2004).⁶

Respondents' other asserted injury -- "feelings of marginalization" allegedly arising from the Proclamation, Add. 34 -- fares no better. "[O]nly * * * 'those persons who are personally denied equal treatment' by * * * challenged discriminatory conduct" have suffered a violation of their own rights that confers standing to object to "the stigmatizing injury often caused by racial [or other invidious] discrimination." Allen v. Wright, 468 U.S. 737, 755 (1984) (citation omitted). Regardless of "the intensity" of a plaintiff's feelings of aggrievement, objecting to government action directed at others is not the type of "personal injury" that supports standing to sue, "even though the disagreement is phrased in [Establishment Clause] terms." Valley Forge Christian Coll. v. Americans United for Separation of Church & State, Inc., 454 U.S. 464, 485-486 (1982). A plaintiff suffers such injury for Establishment Clause purposes when he himself is "subjected to unwelcome religious exercises" or "forced to assume special burdens to avoid them." Id. at 486 n.22.

⁶ The asserted injuries also are not ripe because the aliens abroad might receive waivers under Section 3(c)(i)(A)-(C) of the Proclamation. These asserted injuries thus depend on "contingent future events that may not occur." Texas, 523 U.S. at 300 (citation omitted).

Respondents are not subject to the Proclamation; it applies only to aliens abroad.

The district court's contrary holding conflicts with In re Navy Chaplaincy, 534 F.3d 756 (D.C. Cir. 2008) (Kavanaugh, J.), cert. denied, 556 U.S. 1167 (2009). As the D.C. Circuit explained there, it would "eviscerate well-settled standing limitations" to allow a putative Establishment Clause plaintiff to "re-characterize[]" an abstract injury flowing from "government action" directed against others as a personal injury from "a governmental message [concerning] religion" directed at the plaintiff. Id. at 764. If that were permissible, the D.C. Circuit noted, the challengers in Valley Forge and other cases "could have obtained standing to sue simply by targeting not the government's action, but rather the government's alleged 'message' of religious preference communicated through that action." Ibid.

B. Respondents' Claims Lack Merit

1. The Proclamation is consistent with 8 U.S.C. 1152(a)(A)

The district court held that the Proclamation's entry restrictions violate 8 U.S.C. 1152(a)(1)(A), which prohibits "discriminat[ing]" or granting a "preference or priority" in the "issuance of an immigrant visa because of," inter alia, an alien's "nationality." That interpretation is incorrect, and even the court's reading of Section 1152(a)(1)(A) could not support an

injunction against the Proclamation's restrictions on entry as opposed to immigrant-visa issuance.

a. The district court read Section 1152(a)(1)(A) to create a conflict with the President's authority in Section 1182(f) to suspend the entry of "any class" of aliens. There is no conflict, because the two provisions operate in different spheres. Visas are issued by consular officers, but a visa may not be issued if the applicant "is ineligible to receive a visa * * * under [S]ection 1182." 8 U.S.C. 1201(g). Section 1182 lists many grounds for ineligibility, including criminal history, terrorist affiliation, or a Presidential determination under Section 1182(f) that the alien may not enter the United States. Section 1152(a)(1)(A) provides that, within the universe of aliens who are not disqualified from receiving a visa by a Presidential entry suspension under Section 1182(f), under Section 1185(a)(1), or by any other provision of law, consular officers and other government officials are prohibited from discriminating on the basis of nationality in issuing immigrant visas. The 1965 amendment enacting the provision codified at 8 U.S.C. 1152(a)(1)(A) was designed to eliminate the country-based quota system for immigrants that was previously in effect, not to modify the eligibility criteria for admission or limit preexisting restraints on eligibility such as those in Sections 1182(f) or 1185(a)(1).

See H.R. Rep. No. 745, 89th Cong., 1st Sess. 12-13 (1965); S. Rep. No. 748, 89th Cong., 1st Sess. 11, 13 (1965).

Historical practice strongly supports that reading. President Reagan, for example, suspended entry of "all Cuban nationals" (with exceptions) based on the Cuban government's decision to suspend execution of an immigration agreement with the United States. Proclamation No. 5517, 51 Fed. Reg. 30,470 (Aug. 26, 1986). President Carter invoked Section 1185(a)(1) in 1979 in response to the Iranian Hostage Crisis and announced that the State Department would "invalidate all visas issued to Iranian citizens" and would not reissue visas or issue new visas "except for compelling and proven humanitarian reasons or where the national interest of our own country requires." The American Presidency Project, Jimmy Carter, Sanctions Against Iran Remarks Announcing U.S. Actions (Apr. 7, 1980), <https://goo.gl/3sYHLB>; see Exec. Order No. 12,172, § 1-101, 44 Fed. Reg. 67,947 (Nov. 28, 1979). Those actions would be unlawful under the decision below.

The district court's interpretation of the INA raises grave constitutional questions because it would mean that, by statute, the President cannot suspend entry of aliens from a specified country even if he is aware of a particular threat from an unidentified national of that country, or the United States is on the brink of war with it. The district court's response was that Section 1152(a)(1)(A) might not apply to an entry restriction "of

limited duration, such as during a specific urgent national crisis.” Add. 45. But the text of Section 1152(a)(1)(A) provides no standards that would enable the judiciary to assess whether, for example, the situation in North Korea justifies entry restrictions but the terrorist threat in Somalia does not. That is because Section 1152(a)(1)(A) does not prohibit the President from imposing restrictions on aliens from particular countries in order to protect the Nation in the first place.

b. Even if Section 1152(a)(1)(A) did conflict with Sections 1182(f) and 1185(a)(1), the latter provisions would govern. The district court’s contrary view requires reading Section 1152(a)(1)(A) as partially “repeal[ing]” Sections 1182(f) and 1185(a)(1) by “implication,” which is improper unless Congress’s “intention” is “clear” and “manifest.” National Ass’n of Home Builders v. Defenders of Wildlife, 551 U.S. 644, 662, 664 n.8 (2007) (citation omitted). Nothing in Section 1152(a)(1)(A) -- which does not mention the President or entry -- demonstrates a “clear and manifest” congressional intent to narrow the grants of authority to the President in Sections 1182(f) and 1185(a)(1). Id. at 662 (citation omitted). Sections 1182(f) and 1185(a)(1) also control as the more specific statutes because they confer distinct powers on the President to suspend entry when he determines the national interest requires in particular circumstances, see Sale v. Haitian Ctrs. Council, Inc., 509 U.S.

155, 171-173 (1993), as opposed to Section 1152(a)(1)(A)'s generic prohibition on discrimination in the day-to-day issuance of immigrant visas. Moreover, Section 1185(a)(1) was enacted in its current form in 1978, after Section 1152(a)(1), and thus it prevails as the most recent statute. See Foreign Relations Authorization Act, Fiscal Year 1979, Pub. L. No. 95-426, § 707(a), 92 Stat. 992-993.

c. The district court's reading of 8 U.S.C. 1152(a)(1)(A) suffers from the additional flaw that it cannot justify an injunction against the Proclamation, because the statute by its terms concerns only the "issuance of * * * immigrant visa[s]." Even if Section 1152(a)(1)(A) prohibited the government from denying visas to immigrant applicants from particular countries, Section 1152(a)(1)(A) still would not require the government to take the additional step of allowing the entry of those aliens to the United States.⁷

2. The Proclamation is consistent with the Establishment Clause

Under this Court's precedents, the district court erred in probing behind the facially legitimate and bona fide explanation for the President's national-security directive in search of the President's "true" motive. But even were it otherwise, the

⁷ The district court recognized that Section 1152(a)(1)(A) is limited to immigrant visas. Add. 48. As a result, that provision has no bearing on the large number of aliens covered by the Proclamation who seek nonimmigrant visas.

district court's reasoning disregards the crucial differences between EO-2 and the Proclamation, especially that the latter reflects tailored restrictions to address specific deficiencies in other countries' identity-management protocols, information-sharing practices, and risk factors, that were revealed in a review process by multiple government officials whose motives have never been questioned.

a. Respondents' constitutional challenge to the exclusion of aliens abroad is foreclosed by Mandel, supra. Mandel held that "when the Executive exercises" its authority to exclude aliens "on the basis of a facially legitimate and bona fide reason, the courts will neither look behind the exercise of that discretion, nor test it by balancing its justification against the" asserted constitutional rights of U.S. citizens. 408 U.S. at 770. That test -- which this Court has recently described as "minimal scrutiny (rational-basis review)," Sessions v. Morales-Santana, 137 S. Ct. 1678, 1693 (2017) -- reflects the Constitution's allocation of "exclusive[]" authority over the exclusion of aliens to Congress and the Executive. Mandel, 408 U.S. at 765; see Fiallo, 430 U.S. at 792 (applying Mandel in rejecting equal-protection challenge to statute governing admission of aliens).

A straightforward application of Mandel resolves this case. The district court agreed that the Proclamation is premised on a facially legitimate purpose: protecting national security and the

national interest. Add. 63. And the Proclamation sets forth a bona fide factual basis for that justification: a comprehensive multi-Department review revealed significant deficiencies in the information sharing and identity-management practices of a handful of governments, and those governments did not improve even after diplomatic engagement. Procl. § 1.

The district court treated Mandel's "bona fide" requirement as a license to ensure that the government's stated reason was not given in "bad faith." Add. 63. That was error, as the government has previously explained. See 16-1436 Gov't Br. 67-69. The Mandel Court explicitly held that the "bona fide" analysis does not permit "look[ing] behind" the government's stated reason. 408 U.S. at 770. The district court's approach depends on a misreading of Din, supra, which did not endorse the district court's wide-ranging search for pretext. See 16-1436 Gov't Br. 67-69.

b. Even if the district court could appropriately disregard Mandel, its conclusion that the Proclamation is likely unconstitutional still would be untenable. As the district court recognized, the Proclamation is "facially neutral" with respect to religion, Add. 73, and it is neutral in its operation: it draws distinctions among countries based on national-security risks identified by Congress and the Executive, not religion, and applies without regard to religion within the eight designated countries. The district court nevertheless reasoned that a different order,

EO-2, was the product of religious animus, and that the Proclamation failed to "cure" that taint. Add. 64-84. Both the premise and the conclusion are wrong.

i. As the government has previously explained, the district court was wrong to start from the premise that EO-2 was illegitimate. See 16-1436 Gov't Br. 70-78. The court impermissibly relied on certain extrinsic material, principally comments made by then-candidate Trump and by campaign and presidential aides. Add. 66-72. The court's approach was precisely the sort of "judicial psychoanalysis of" a government official's "heart of hearts" that this Court has rejected. McCreary County v. ACLU of Ky., 545 U.S. 844, 862 (2005). It threatens impermissible intrusion on privileged internal Executive Branch deliberations, see United States v. Nixon, 418 U.S. 683, 708 (1974), and carries the potential for litigant-driven discovery that would disrupt the President's execution of the laws, see Nixon v. Fitzgerald, 457 U.S. 731, 749-750 (1982).

ii. Regardless of any conclusion about EO-2, however, respondents have not plausibly alleged that the Proclamation was the product of religious animus. The Proclamation differs from EO-2 both in process and in substance. It is the product of a review and recommendation process undertaken by multiple Cabinet officials and other Executive officers whose motives have never been questioned. It is based on express findings of inadequacies

in other countries' identity-management protocols, information-sharing practices, and risk factors, as well as a Presidential determination that tailored entry restrictions will both protect the Nation and encourage those countries to improve. And it covers different countries than EO-2: removing one majority-Muslim country; adding other countries that are both majority-Muslim and non-majority-Muslim; and excluding various categories of nonimmigrant travelers, including from majority-Muslim countries.

The district court's grounds for concluding that the Proclamation is "tainted" by EO-2 do not withstand scrutiny. The court reasoned that the Proclamation is similar to EO-2 because it imposes entry restrictions on some of the same foreign nationals based on national-security concerns. Add. 75-78. EO-2, however, restricted countries that Congress and the Executive had previously identified as posing heightened terrorism-related concerns, pending a full review. That review has now occurred, and the fact that some but not all of those countries were similarly assessed to be problematic under the Proclamation's criteria cannot possibly be a constitutional disability.

The district court also criticized the Proclamation for "deviating from the general findings of the DHS review," citing the restrictions on Somalia and Venezuela. Add. 78. But in each case, the Proclamation explained why the President's determinations were justified by individual country conditions.

Although Somalia generally satisfies the government's information-sharing criteria, the Acting Secretary of Homeland Security explained that it has identity-management deficiencies and a persistent terrorist presence, and the President determined that those unique circumstances warranted restrictions. See Procl. §§ 1(i), 2(h)(ii). Venezuela does not share needed information, but the Proclamation explains that the United States has alternative means to verify the identity of its nationals, and so the President determined that a less restrictive approach was appropriate. See id. § 2(f)(ii).

The district court responded that the multi-agency review process is not sufficient to justify the Proclamation because the outcome of that process "was at least partially pre-ordained." Add. 76. The court pointed to a sentence in Section 2(e) of EO-2 stating that the Acting Secretary of Homeland Security "'shall submit to the President a list of countries recommended for inclusion in a Presidential proclamation that would prohibit the entry of appropriate categories of foreign nationals,'" which the court read to mean that the Acting Secretary was not permitted "to recommend that no nationality-based travel ban is necessary." Ibid. That is not a fair reading of EO-2, which specifically reserved judgment about whether it would be "appropriate" to prohibit the entry of any category of foreign nationals. Moreover, the Proclamation left it to the Acting Secretary to assess what

information was required from each country, which was the key factor driving whether any further entry restrictions would be appropriate. The Proclamation explains the national-security reasons that led the Acting Secretary to recommend entry restrictions on each of the countries covered by the Proclamation, and there is no evidence whatsoever that the Acting Secretary felt constrained by EO-2 to recommend entry restrictions on at least some countries.

The district court also made its own assessment that the Proclamation lacks "facts establishing that a broad nationality-based travel ban is justified." Add. 79. No such "facts" are required. Past Presidents have suspended or restricted entry of aliens from particular nationalities "not because of a particular concern that entry of the individuals themselves would be detrimental, but rather, as retaliatory diplomatic measures." Hawaii v. Trump, 859 F.3d 741, 772 n.13 (9th Cir. 2017) (per curiam) (emphases added). In any event, the President here relied on the results of the government's comprehensive review process, which included detailed assessments of the threat conditions in each of the covered countries. This Court has recognized that the President generally need not "disclose" the specifics of his "reasons for deeming nationals of a particular country a special threat." Reno v. American-Arab Anti-Discrimination Comm., 525 U.S. 471, 491 (1999). Especially "when it comes to collecting

evidence and drawing factual inferences" in the national-security context, "'the lack of competence on the part of the courts is marked,' * * * and respect for the Government's conclusions is appropriate." Holder v. Humanitarian Law Project, 561 U.S. 1, 34 (2010) (HLP).

Finally, the district court once again invoked extrinsic statements of the President characterizing EO-2. Add. 81-83. In addition to being improper for all of the reasons explained above, those statements are inapposite here because the criteria for the review that led to the Proclamation were developed by multiple government agencies and their Cabinet heads. There is no reason to doubt their integrity or the legitimacy of their conclusions, and it is those conclusions that justify the Proclamation.

III. THE BALANCE OF EQUITIES SUPPORTS A STAY

A. The injunction causes direct, irreparable injury to the interests of the government and the public, which merge here, see Nken v. Holder, 556 U.S. 418, 435 (2009). "[A]ny time a State is enjoined by a court from effectuating statutes enacted by representatives of its people, it suffers a form of irreparable injury." Maryland v. King, 133 S. Ct. 1, 3 (2012) (Roberts, C.J., in chambers) (quoting New Motor Vehicle Bd. v. Orrin W. Fox Co., 434 U.S. 1345, 1351 (1977) (Rehnquist, J., in chambers)) (brackets in original). A fortiori this is true when a Proclamation of the President of the United States is enjoined.

The injunction here, moreover, is particularly harmful because it directly undermines the government's ability to safeguard national security and conduct foreign relations -- "urgent objective[s] of the highest order." Trump v. IRAP, 137 S. Ct. 2080, 2088 (2017) (quoting HLP, 561 U.S. at 28). As discussed, the Proclamation is based on a finding that certain foreign governments have inadequate information-sharing, identity-management protocols, or other risk factors that deny the United States sufficient information to assess the risks posed by their nationals; it thus suspends entry of certain nationals from those countries and applies diplomatic pressure in order to achieve greater cooperation. As this Court previously recognized, "[t]o prevent the Government from pursuing that objective * * * would appreciably injure its interests." Ibid.

The district court was wrong to discount these harms. Add. 86. Despite acknowledging that "no governmental interest is more compelling than the security of the Nation," Add. 86, the court was not persuaded "that national security cannot be maintained without the unprecedented" Proclamation, because "visa applicants from the Designated Countries [will] still be screened." Ibid. But the Proclamation rests on a different policy judgment by the President, informed by a just-completed, multi-agency review, that the information provided by certain foreign governments is not adequate, and furthermore that the tailored restrictions will

motivate foreign governments to improve their practices. It is the injunction in this case that departs from the status quo by breaking with historical practice to sharply curtail the President's authority.

For the same reason, the fact that the court limited its injunction to parties with a bona fide relationship with a person or entity in the United States is not sufficient to prevent irreparable harm to the government. That standard was designed to track the limitations that this Court imposed on the injunctions against EO-2. But as explained, EO-2 involved temporary procedures before the review was conducted and in the absence of a Presidential determination concerning the adequacy of foreign governments' information-sharing. Now that the review has been completed and identified ongoing deficiencies in the information needed to assess nationals of particular countries, additional restrictions are warranted. The Proclamation found that persons traveling on immigrant visas create particular challenges, Procl. § 1(h)(ii), yet the district court's order would surely undermine the Proclamation's suspensions on immigrant-visa travel, because most immigrant-visa holders have a bona fide relationship with a person or entity in the United States.

The district court also stated that the public interest is served by barring enforcement of a Proclamation that violates the Establishment Clause and the INA. Add. 87. That reasoning

conflates the equities and the merits. And it mistakenly disregards the public's interest in effectuating the Executive's determination to exclude certain aliens from countries that pose a heightened threat. Cf. Nken, 556 U.S. at 436 (That "there is a public interest in preventing aliens from being wrongfully removed * * * is no basis for the blithe assertion of an 'absence of any injury to the public interest' when a stay [of a removal order] is granted."). The public has a strong interest in suspension of entry of aliens whose admission the President has determined, in consultation with his Cabinet and pursuant to his statutory authority, would be detrimental to the Nation's interests.

B. By contrast, respondents have failed to "demonstrate that irreparable injury is likely in the absence of an injunction." Winter, 555 U.S. at 22. The only concrete harm respondents allege is that the Proclamation will prevent certain identified aliens from entering the United States. But delay in entry alone, especially for the brief period while the government's appeal of the injunction is pending (on an expedited briefing schedule), does not amount to irreparable harm. Moreover, as explained above, see p. 21, supra, it is speculative whether any particular aliens abroad would be denied a waiver and actually delayed during the pendency of an appeal. At the very least, respondents' speculative allegations do not outweigh the harm caused to the Nation as a whole in protecting the national security.

IV. THE GLOBAL INJUNCTION IS OVERBROAD AND SHOULD BE STAYED TO THE EXTENT IT GRANTS RELIEF BEYOND RESPONDENTS THEMSELVES

At a minimum, a stay is warranted because the injunction is vastly overbroad, as it was in United States Department of Defense v. Meinhold, 510 U.S. 939 (1993) (unanimously granting stay of injunction pending appeal insofar as it "grant[ed] relief to persons other than" the named plaintiff). Both Article III and equitable principles require that injunctive relief must be limited to redressing a plaintiff's own injuries stemming from a violation of his own rights. See 16-1436 Gov't Br. 78-79. That is especially so for a preliminary injunction in the context of national security. But the district court's injunction enjoins any application of the Proclamation's restrictions to any national of six of the covered countries with a credible claim of a bona fide relationship with a person or entity in the United States. As noted, that would cover most individuals seeking immigrant visas, and thus many of the foreign nationals covered by the Proclamation. The court stated that respondents "are located in different parts of the United States," Add. 90, and that "an Establishment Clause violation has impacts beyond the personal interests of individual parties," ibid., but neither of those observations explains why a sweeping injunction is necessary to afford complete relief to respondents themselves.

The district court also asserted that the need for uniform immigration law compels nationwide relief. Add. 90-91. To the

contrary, respect for uniformity requires leaving the Proclamation's global policy in place, with individualized exceptions for any respondents who have established irreparable injury from a violation of their own rights. The Proclamation's severability clause compels the same conclusion. Procl. § 8(a). Tailored relief would impose far less interference than enjoining the Proclamation categorically based on the injuries to a few individuals and organizations. As in Meinhold, this Court at a minimum should stay the injunction to the extent it affords relief beyond respondents themselves.

CONCLUSION

The injunction should be stayed in its entirety pending the disposition of the appeal in the Fourth Circuit and, if that court affirms the injunction, pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. At a minimum, the injunction should be stayed as to all persons other than those aliens specifically identified by respondents whose exclusion would impose a cognizable, irreparable injury on respondents themselves.

Respectfully submitted.

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Solicitor General

NOVEMBER 2017

ADDENDUM

District Court Memorandum Opinion Granting Preliminary Injunction (D. Md. Oct. 17, 2017)	1
Exec. Order No. 13,780, 82 Fed. Reg. 13,209 (Mar. 9, 2017)	92
Proclamation No. 9645, 82 Fed. Reg. 45,161 (Sept. 27, 2017)	103